

ENGLISH FOR WORK / SEPTEMBER 2026

# Law English

## Conversation lab

12 complete workplace dialogues, followed by eight additional role-play cases. Study the exchanges, then make the conversation your own.

### PRACTICE THAT TRANSFERS TO WORK

Read a realistic case. Find the right language. Speak, write, get feedback, and try again.

Eight lessons | Intermediate to advanced | Independent or classroom study

For lawyers, paralegals, compliance staff, contracts specialists, legal operations teams, and law-adjacent professionals.

Fictional language practice. Legal, financial, and regulatory meanings depend on jurisdiction and context; use current documents and qualified review for actual decisions.

All scenarios, figures, and model responses are fictional teaching material. Use invented details in practice.

[Open this course on English Ladder](#)

# Inside this conversation lab

Original fictional training conversations in professional English. These are realistic scripts, not transcripts of actual people. The professional roles are the speaker labels; all figures, incidents, and organizations are invented.

- 01 Client Intake: Strong Emotions, Missing Facts
- 02 Partner Assignment: Research Memo Under Pressure
- 03 Contract Redline: Indemnity and Liability Cap
- 04 Discovery Meet-and-Confer: Overbroad Requests
- 05 Deposition Prep: Nervous Witness
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- 08 Settlement Caucus: Risk, Cost, and Authority
- 09 Compliance Review: Advertising Claim Substantiation
- 10 Board Briefing: Material Risk and Disclosure
- 11 Internal Investigation: Neutral Interviewing
- 12 Oral Argument: Answering the Hard Question

Then try eight independent role-play cases, followed by feedback criteria and references.

# Read it. Hear it. Make it yours.

1. Read the setting. Identify the roles, the immediate problem, and what each speaker needs.
2. Read the whole conversation aloud with a partner. In a group, give a third person the observer role. For three-speaker scripts, assign each professional a separate voice.
3. Notice how the speakers ask a specific question, qualify a claim, disagree, explain a technical point, or agree on a next step. Underline language you would actually use.
4. Cover the script. Recreate the exchange using the situation and professional roles. Keep the meaning, but change the wording.
5. Switch roles and introduce a complication: a missing record, a different priority, an unavailable colleague, or a changed assumption. End with a clear outcome or unresolved question.

## Register and terminology

These colleagues use concise professional language. In an internal technical meeting, familiar abbreviations can be natural. With a new colleague or a client, expand unfamiliar terms and check understanding. Keep disagreement directed at the evidence or proposal, and match the degree of certainty to what is known.

## Independent study

Speak each role aloud. Pause before the reply and supply your own response before revealing the next line. Record a second version using invented details, then compare its clarity and tone with the script.

## Professional context

Fictional language practice. Legal, financial, and regulatory meanings depend on jurisdiction and context; use current documents and qualified review for actual decisions.

**FULL DIALOGUE 01 / 7 SPEAKING TURNS**

# Client Intake: Strong Emotions, Missing Facts

A potential client calls after receiving a demand letter from a former business partner.

Roles: Client / Legal team / Associate counsel

**Client:** They are lying. Can you tell them we will sue immediately?

**Legal team:** I understand this feels urgent. Before we discuss strategy, I need to gather facts and run a conflict check.

**Associate counsel:** Can you send the demand letter, the contract, and any recent emails with the former partner? Also, please list the company names and individuals involved so we can check conflicts.

**Client:** So do we have a case?

**Associate counsel:** I cannot assess that responsibly from one call. After we review the documents and confirm scope, we can identify claims, defenses, deadlines, and practical options.

**Client:** I can send the letter and contract through your secure intake channel. What else do you need before deciding whether to act?

**Associate counsel:** The party names for the conflict check and the relevant dates. We will explain any engagement terms before undertaking representation.

## Notice the professional language

Good intake language protects trust without promising an outcome.

Conflict checks and engagement scope should come before substantive commitments.

## Rehearse and extend

Explain the issue and the agreed next step without reading. Identify any point still awaiting evidence, agreement, or approval. Then replay the exchange with a changed constraint and a new ending.

Observer: note one natural professional expression and one place where the follow-up made the meaning clearer.

## FULL DIALOGUE 02 / 6 SPEAKING TURNS

# Partner Assignment: Research Memo Under Pressure

A partner asks for a quick memo on whether a forum-selection clause is enforceable.

Roles: Partner / Associate counsel

**Partner:** I need an answer by noon. Is the forum-selection clause enforceable?

**Associate counsel:** I can give you a short answer by noon. To focus the research, which jurisdiction controls, and are we challenging enforcement or defending it?

**Partner:** Defending it in federal court. The contract chooses Delaware law but the case was filed in California.

**Associate counsel:** Understood. I'll assess the governing procedural framework, relevant federal and state authority, the clause wording, and procedural posture. I'll identify binding and persuasive sources and flag contrary authority rather than assume one jurisdiction label settles the question.

**Partner:** Focus the initial memo on the procedural options and flag what you cannot verify by noon.

**Associate counsel:** I will distinguish the preliminary answer from any research still in progress and identify the source for each proposition.

## Notice the professional language

Clarify jurisdiction, posture, desired use, and deadline before researching.

A legal memo should say how strong the answer is and why.

## Rehearse and extend

Explain the issue and the agreed next step without reading. Identify any point still awaiting evidence, agreement, or approval. Then replay the exchange with a changed constraint and a new ending.

Observer: note one natural professional expression and one place where the follow-up made the meaning clearer.

## FULL DIALOGUE 03 / 7 SPEAKING TURNS

# Contract Redline: Indemnity and Liability Cap

A SaaS vendor and enterprise customer negotiate risk allocation.

Roles: Sales lead / Lawyer / Associate counsel

**Sales lead:** The customer rejected our limitation of liability. Can we just accept?

**Lawyer:** Not without understanding the exposure.

**Associate counsel:** The issue is not only the cap amount. Their redline excludes confidentiality, data security, IP infringement, and indemnity claims from the cap. That could create uncapped exposure.

**Sales lead:** What is a reasonable fallback?

**Associate counsel:** We can offer a super-cap for data security and IP claims, tied to a multiple of fees, while keeping consequential damages excluded. I would not accept unlimited liability without executive approval.

**Sales lead:** I will send the business rationale and the complete redline to the review team.

**Associate counsel:** Include the customer's stated concern so we can assess appropriate alternatives without accepting unreviewed exposure.

## Notice the professional language

Limitation of liability - A clause limiting the amount or type of damages recoverable.

## Rehearse and extend

Explain the issue and the agreed next step without reading. Identify any point still awaiting evidence, agreement, or approval. Then replay the exchange with a changed constraint and a new ending.

Observer: note one natural professional expression and one place where the follow-up made the meaning clearer.

## FULL DIALOGUE 04 / 6 SPEAKING TURNS

# Discovery Meet-and-Confer: Overbroad Requests

Opposing counsel requests all communications from five years across every product line.

Roles: Opposing counsel / Associate counsel

**Opposing counsel:** Your objections are boilerplate. We need all communications to understand the pattern.

**Associate counsel:** We disagree that the request is proportional as drafted. It covers unrelated products, custodians, and time periods. We can propose targeted custodians, search terms, and a three-year window tied to the claims.

**Opposing counsel:** You are withholding relevant evidence.

**Associate counsel:** We are not refusing discovery. We are asking to tailor the scope to nonprivileged, relevant, and proportional material. If you identify specific gaps, we can discuss them.

**Opposing counsel:** Send the proposed custodians and date range. We can identify any concrete gaps in that approach.

**Associate counsel:** I will circulate a written proposal and preserve our positions while we seek a workable, appropriately scoped process.

## Notice the professional language

Meet-and-confer language should be firm, record-conscious, and professional.

Avoid personal accusations; keep the discussion on scope, burden, relevance, and proportionality.

## Rehearse and extend

Explain the issue and the agreed next step without reading. Identify any point still awaiting evidence, agreement, or approval. Then replay the exchange with a changed constraint and a new ending.

Observer: note one natural professional expression and one place where the follow-up made the meaning clearer.

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**FULL DIALOGUE 05 / 6 SPEAKING TURNS**

# Deposition Prep: Nervous Witness

A product manager will be deposed about an internal defect report.

Roles: Witness / Associate counsel

**Witness:** What if I do not remember? I do not want to look unprepared.

**Associate counsel:** If you do not remember, say that. Do not guess. Listen to the full question, answer only that question, and ask for clarification if a term is unclear.

**Witness:** Can I explain the whole background?

**Associate counsel:** Only if the question asks for it. Your job is to testify truthfully, not to volunteer every fact. If privileged legal advice comes up, pause so counsel can address it.

**Witness:** If the question assumes something I disagree with, should I still answer yes or no?

**Associate counsel:** Ask for clarification and answer truthfully. We can practice identifying an unclear premise without inventing or rehearsing facts.

## Notice the professional language

Deposition prep language must be ethical: truthful, clear, and non-coaching as to substance.

Learners should avoid scripts that tell a witness what facts to say.

## Rehearse and extend

Explain the issue and the agreed next step without reading. Identify any point still awaiting evidence, agreement, or approval. Then replay the exchange with a changed constraint and a new ending.

Observer: note one natural professional expression and one place where the follow-up made the meaning clearer.

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## FULL DIALOGUE 06 / 6 SPEAKING TURNS

# Privilege Review: Copying a Lawyer Is Not Magic

A review team is deciding whether internal emails are privileged.

Roles: Reviewer / Associate counsel

**Reviewer:** Legal is copied, so this is privileged.

**Associate counsel:** Maybe, but not automatically. We need to ask whether the email seeks or gives legal advice, who received it, and whether confidentiality was maintained.

**Reviewer:** This one discusses pricing strategy with counsel copied.

**Associate counsel:** That may be business advice rather than legal advice. Let's tag it for senior review instead of making the privilege call ourselves.

**Reviewer:** I will mark the mixed business and legal discussion for the designated reviewer.

**Associate counsel:** Preserve the context and recipients. The review needs the actual communication, not simply the fact that counsel was copied.

## Notice the professional language

Privilege calls are jurisdiction- and fact-sensitive.

Escalation language is better than overconfident privilege conclusions.

## Rehearse and extend

Explain the issue and the agreed next step without reading. Identify any point still awaiting evidence, agreement, or approval. Then replay the exchange with a changed constraint and a new ending.

Observer: note one natural professional expression and one place where the follow-up made the meaning clearer.

## FULL DIALOGUE 07 / 7 SPEAKING TURNS

# Motion Strategy: Dismiss or Summary Judgment?

The team discusses whether to challenge a weak claim early.

Roles: Client / Lawyer / Associate counsel

**Client:** The claim is false. Can we file a motion to dismiss?

**Lawyer:** A motion to dismiss usually tests legal sufficiency, not whether the facts are true.

**Associate counsel:** If the complaint fails to state a required element, dismissal may be worth researching. If our argument depends on evidence outside the pleadings, summary judgment may be the better later vehicle.

**Client:** So we wait?

**Associate counsel:** We should evaluate cost, timing, likelihood of success, and whether an early motion educates the court or only delays discovery.

**Client:** I will ask the litigation team to compare the procedural options and likely costs.

**Associate counsel:** We will assess those against the actual pleadings, evidence, rules, and your objectives before recommending a filing.

## Notice the professional language

Procedural posture changes the available argument.

A client-friendly explanation should distinguish legal sufficiency from factual proof.

## Rehearse and extend

Explain the issue and the agreed next step without reading. Identify any point still awaiting evidence, agreement, or approval. Then replay the exchange with a changed constraint and a new ending.

Observer: note one natural professional expression and one place where the follow-up made the meaning clearer.

## FULL DIALOGUE 08 / 6 SPEAKING TURNS

# Settlement Caucus: Risk, Cost, and Authority

During mediation, the client wants to reject a settlement offer on principle.

Roles: Client / Associate counsel

**Client:** I would rather go to trial than pay them anything.

**Associate counsel:** That is a valid business position, but let's separate principle from decision risk. Trial could vindicate the company, but it also means legal fees, management distraction, uncertainty, and potential adverse precedent.

**Client:** What range do you recommend?

**Associate counsel:** I recommend reviewing a range based on the evidence, cost, and downside exposure before seeking the client's settlement instructions. Proposed confidentiality, release, and other terms need case-specific legal assessment and explicit authority.

**Client:** I want to understand that range before giving any settlement authority.

**Associate counsel:** We will review the assumptions and terms together and record your instructions explicitly.

## Notice the professional language

Settlement language should respect client values while surfacing decision consequences.

Authority, release, confidentiality, and non-admission terms often matter as much as amount.

## Rehearse and extend

Explain the issue and the agreed next step without reading. Identify any point still awaiting evidence, agreement, or approval. Then replay the exchange with a changed constraint and a new ending.

Observer: note one natural professional expression and one place where the follow-up made the meaning clearer.

## FULL DIALOGUE 09 / 6 SPEAKING TURNS

# Compliance Review: Advertising Claim Substantiation

Marketing wants to launch an ad saying a product is 'clinically proven' to improve focus.

Roles: Marketing / Associate counsel

**Marketing:** Competitors make stronger claims than this. Can we approve it?

**Associate counsel:** We need substantiation for the express and implied claims before launch. 'Clinically proven' suggests reliable evidence, not just user testimonials.

**Marketing:** We have a small internal survey.

**Associate counsel:** That may support customer satisfaction, but probably not a clinical efficacy claim. A safer path is to revise the claim to match the evidence or obtain stronger support before release.

**Marketing:** I will provide the survey methods and draft wording for review.

**Associate counsel:** We will assess what those materials support and identify any revision or further substantiation needed before publication.

## Notice the professional language

Compliance review often turns on what a reasonable consumer may take from the claim.

The legal team should propose a compliant alternative, not only block the campaign.

## Rehearse and extend

Explain the issue and the agreed next step without reading. Identify any point still awaiting evidence, agreement, or approval. Then replay the exchange with a changed constraint and a new ending.

Observer: note one natural professional expression and one place where the follow-up made the meaning clearer.

**FULL DIALOGUE 10 / 7 SPEAKING TURNS**

# Board Briefing: Material Risk and Disclosure

An in-house legal team briefs executives on a regulatory inquiry.

Roles: CFO / General counsel / Associate counsel

**CFO:** Do we have to disclose this inquiry?

**General counsel:** We need a materiality analysis before answering.

**Associate counsel:** Current facts: the regulator requested documents, no allegations have been filed, potential exposure is uncertain, and the issue relates to a growing product line. The disclosure question depends on likelihood, magnitude, existing public statements, and investor significance.

**CFO:** Can we say it is not material?

**Associate counsel:** I would not say that yet. We can say legal is assessing materiality and will update the disclosure committee after reviewing the request and business impact.

**CFO:** I will provide the relevant business figures and current public statements.

**Associate counsel:** That context will help the disclosure team assess the issue without prejudging materiality.

## Notice the professional language

Materiality language should not be rushed.

Board and executive updates need known facts, unknowns, timing, owner, and decision path.

## Rehearse and extend

Explain the issue and the agreed next step without reading. Identify any point still awaiting evidence, agreement, or approval. Then replay the exchange with a changed constraint and a new ending.

Observer: note one natural professional expression and one place where the follow-up made the meaning clearer.

**FULL DIALOGUE 11 / 8 SPEAKING TURNS**

# Internal Investigation: Neutral Interviewing

Legal interviews an employee about a possible policy violation.

Roles: Employee / Associate counsel

**Employee:** Am I being accused of something?

**Associate counsel:** We are gathering facts about a concern that was reported. I am not here to argue with you or make a final decision today.

**Employee:** Should I delete my personal notes?

**Associate counsel:** No. Please preserve documents and messages that may relate to this topic. If you are unsure whether something is relevant, ask before deleting or changing it.

**Employee:** Can you tell me what other people said?

**Associate counsel:** I cannot share interview details. I can ask you about your own recollection and any documents that may help us understand the timeline.

**Employee:** I can describe what I remember and identify the records that may help.

**Associate counsel:** Please distinguish what you observed directly from what you heard later. We will follow the approved process for further questions.

## Notice the professional language

Investigation questions should avoid suggesting the desired answer.

Preservation language should be simple, direct, and documented.

## Rehearse and extend

Explain the issue and the agreed next step without reading. Identify any point still awaiting evidence, agreement, or approval. Then replay the exchange with a changed constraint and a new ending.

Observer: note one natural professional expression and one place where the follow-up made the meaning clearer.

## FULL DIALOGUE 12 / 6 SPEAKING TURNS

# Oral Argument: Answering the Hard Question

Moot-court exercise about an invented contract. For this exercise, subsection (b) covers notice before termination; subsection (c) addresses post-termination conduct and its remedy. The advocates are testing a hypothetical reading, not describing an actual statute.

Roles: Judge / Associate counsel

**Judge:** Counsel, does your reading make subsection (c) unnecessary?

**Associate counsel:** No, Your Honor. Subsection (c) still does work in two situations. First, it covers post-termination conduct. Second, it supplies the remedy when the notice period has expired.

**Judge:** But the other side says that is not in the text.

**Associate counsel:** Respectfully, the text supports it when subsections (b) and (c) are read together. If the Court disagrees, our narrower fallback is that dismissal should be without prejudice because the defect is curable.

**Judge:** Counsel, explain how your fallback preserves the issue for a revised pleading in this exercise.

**Associate counsel:** Our proposed fallback allows an amendment addressing the identified defect; it does not ask the Court to treat the current pleading as sufficient.

## Notice the professional language

Advocacy language should answer directly, then explain.

Fallback arguments preserve credibility when the main argument faces pressure.

## Rehearse and extend

Explain the issue and the agreed next step without reading. Identify any point still awaiting evidence, agreement, or approval. Then replay the exchange with a changed constraint and a new ending.

Observer: note one natural professional expression and one place where the follow-up made the meaning clearer.

## **Eight more situations to make your own**

The following cases are open role plays. They give you facts, contrasting roles, useful expressions, and a short model response. Use what you learned from the complete dialogues to create a longer exchange.

Preparation: two minutes. Conversation: three to five minutes. Feedback: one minute. Switch roles and repeat with the second-round challenge.



## ROLE-PLAY CASE 01

# Legal English Mindset: Facts, Issues, Rules, Risk

**SHARED CASE**

An internal case note says a supplier "breached the contract." The team has the delivery email but has not reviewed the signed agreement.

**Role A | Responding professional**

Separate observations, assumptions, and conclusions. Use only the facts given. Choose two relevant terms and be ready to explain one of them in ordinary words.

**Role B | Listener**

You need to tell a colleague what is known. Ask which part is confirmed and which part is an assumption. Challenge one statement that sounds more certain than the case supports.

**Useful expressions**

The available evidence shows ... .

This may indicate ..., but ... .

We have not yet established whether ... .

**Cover this until after your first attempt**

The delivery email records a delay. Whether that amounts to a breach requires review of the agreement and relevant law. I'll separate the documented facts from the legal questions in the note.

**Second round**

Someone asks for a yes-or-no answer when the evidence supports only a qualified answer. Be concise while preserving the uncertainty.

**Debrief**

Which phrase helped the listener? Which case fact needed clarification? Write one better follow-up question, then repeat the exchange.

## ROLE-PLAY CASE 02

# Client Intake, Scope, Conflicts, and Confidentiality

**SHARED CASE**

A prospective client sends a long description of a dispute and asks for immediate advice. The intake team has not completed its conflict check.

**Role A | Responding professional**

Clarify missing information before responding. Use only the facts given. Choose two relevant terms and be ready to explain one of them in ordinary words.

**Role B | Listener**

You need to know exactly what information is missing. Give one answer only after your partner asks a focused question; then ask them to confirm their understanding.

**Useful expressions**

When you say ..., do you mean ...?

Could you clarify which ...?

So, my understanding is ... . Is that right?

**Cover this until after your first attempt**

Before we discuss advice, could you provide the names of the parties and the type of assistance you are seeking? Our team needs to complete intake and confirm the scope of any engagement.

**Second round**

The other person uses an ambiguous word such as 'ready', 'approved', or 'urgent'. Clarify it before continuing.

**Debrief**

Which phrase helped the listener? Which case fact needed clarification? Write one better follow-up question, then repeat the exchange.

## ROLE-PLAY CASE 03

# Litigation Lifecycle: Pleadings, Motions, Deadlines, Strategy

**SHARED CASE**

A litigation task list has two dates from different documents. The supervising lawyer has not confirmed which deadline controls.

**Role A | Responding professional**

Distinguish completed work from pending work and explain its impact. Use only the facts given. Choose two relevant terms and be ready to explain one of them in ordinary words.

**Role B | Listener**

You need to brief someone who has only one minute. Ask what is complete, what is open, and which open item affects the next action.

**Useful expressions**

We have completed ...; ... remains open.

As of ..., the status is ... .

The next update will cover ... .

**Cover this until after your first attempt**

The task list contains conflicting dates. I have attached both source documents and flagged the issue for your review. Please confirm the controlling deadline before I update the calendar.

**Second round**

The listener asks you to reduce the update to two sentences. Preserve the most important completed and pending items.

**Debrief**

Which phrase helped the listener? Which case fact needed clarification? Write one better follow-up question, then repeat the exchange.

## ROLE-PLAY CASE 04

# Discovery, ESI, Privilege Review, and Depositions

**SHARED CASE**

A document reviewer finds an email chain that may contain privileged communications. It is in a review set, not yet a production set.

**Role A | Responding professional**

Make a request with a clear action, purpose, and realistic timing. Use only the facts given. Choose two relevant terms and be ready to explain one of them in ordinary words.

**Role B | Listener**

You can help but need a clear request and its purpose. Ask what is required and whether the timing is fixed or negotiable.

**Useful expressions**

Could you provide ... so that ...?

Please confirm ... by [agreed time].

If that timing is not possible, please let me know ...

**Cover this until after your first attempt**

Please review this email chain for potential privilege before a production decision. I've identified the participants and relevant messages. I have not made a final privilege determination.

**Second round**

The other person cannot meet the requested timing. Clarify an alternative without inventing authority to change a formal deadline.

**Debrief**

Which phrase helped the listener? Which case fact needed clarification? Write one better follow-up question, then repeat the exchange.

## ROLE-PLAY CASE 05

# Legal Research, Authority, and Memo Writing

**SHARED CASE**

A draft memo cites one decision as controlling authority. The case came from another jurisdiction and the research is still preliminary.

**Role A | Responding professional**

Explain a useful distinction in plain English. Use only the facts given. Choose two relevant terms and be ready to explain one of them in ordinary words.

**Role B | Listener**

You are unfamiliar with one technical term in the case. Ask for a plain-English explanation and then paraphrase it. Do not pretend to understand a term you cannot explain.

**Useful expressions**

In this context, ... means ... .

The difference is that ... .

How would you explain that distinction to a colleague?

**Cover this until after your first attempt**

This decision may help the analysis, but we should not label it binding without checking its authority in the relevant jurisdiction. I'll explain that distinction and identify what further research is needed.

**Second round**

Your listener is new to this field. Replace two specialist expressions with clear explanations without changing the meaning.

**Debrief**

Which phrase helped the listener? Which case fact needed clarification? Write one better follow-up question, then repeat the exchange.

## ROLE-PLAY CASE 06

# Contracts, Redlines, and Negotiation

**SHARED CASE**

A draft services agreement requires delivery within ten days. The commercial team needs fifteen days and wants the contract team to propose wording.

**Role A | Responding professional**

Negotiate scope or timing while making conditions explicit. Use only the facts given. Choose two relevant terms and be ready to explain one of them in ordinary words.

**Role B | Listener**

You want the preferred outcome but can accept one tradeoff. Ask for two options, then state which condition you can accept and which still needs approval.

**Useful expressions**

We can ..., provided that ... .

Would you prefer ... or ...?

I can take that proposal for review; I cannot yet confirm ... .

**Cover this until after your first attempt**

Our delivery team can commit to fifteen days under the current scope. Could we revise the proposed period accordingly? I'll send the business rationale for legal review with the redline.

**Second round**

The preferred option is unavailable. Offer an alternative and clearly state any approval still needed.

**Debrief**

Which phrase helped the listener? Which case fact needed clarification? Write one better follow-up question, then repeat the exchange.

## ROLE-PLAY CASE 07

# Corporate, Compliance, Regulatory, and Investigation Language

**SHARED CASE**

An employee interview contains a report of possible misconduct. A manager asks to describe the allegation as a confirmed violation in a summary.

**Role A | Responding professional**

Separate observations, assumptions, and conclusions. Use only the facts given. Choose two relevant terms and be ready to explain one of them in ordinary words.

**Role B | Listener**

You need to tell a colleague what is known. Ask which part is confirmed and which part is an assumption. Challenge one statement that sounds more certain than the case supports.

**Useful expressions**

The available evidence shows ... .

This may indicate ..., but ... .

We have not yet established whether ... .

**Cover this until after your first attempt**

At this stage, we have an allegation and an interview record. The finding is not established. I'll use neutral wording and identify the questions that the investigation still needs to resolve.

**Second round**

Someone asks for a yes-or-no answer when the evidence supports only a qualified answer. Be concise while preserving the uncertainty.

**Debrief**

Which phrase helped the listener? Which case fact needed clarification? Write one better follow-up question, then repeat the exchange.

## ROLE-PLAY CASE 08

# Advocacy, Settlement, Ethics, and Professional Judgment

**SHARED CASE**

Two team members disagree about settlement priorities. One prioritizes timing; the other prioritizes confidentiality. Counsel is preparing for a client discussion.

**Role A | Responding professional**

Include relevant voices and clarify the decision process. Use only the facts given. Choose two relevant terms and be ready to explain one of them in ordinary words.

**Role B | Listener**

You hold a relevant concern that has not been discussed. Raise it when invited and ask who will decide. Help the facilitator state one unresolved question accurately.

**Useful expressions**

Let's hear ... before we decide.

The point we still need to resolve is ... .

Who will make this decision, and what do they need?

**Cover this until after your first attempt**

Let's separate the objectives before discussing terms. How important are timing and confidentiality to the client? We can present the options and their implications for the client's instructions.

**Second round**

A participant interrupts or the meeting is running out of time. Protect a turn to speak and close with an accurate decision record.

**Debrief**

Which phrase helped the listener? Which case fact needed clarification? Write one better follow-up question, then repeat the exchange.



# Give feedback that helps

Score each criterion 0, 1, or 2. This is a practice rubric, not a professional qualification or CEFR test. Do not award or remove points for a particular accent.

## Meaning and accuracy

Keeps the case facts accurate; clearly separates confirmed and unknown information.

## Clarity and language

Uses understandable sentences and explains specialist terms when the listener needs it.

## Interaction and tone

Responds to the other person's question, checks understanding, and uses an appropriate tone.

## Task completion

Makes the requested action or unresolved question clear without inventing authority or facts.

## Use the same scale for each criterion

0 - Not yet: The reader or listener cannot yet recover the intended meaning or action.

1 - With support: The message works after a prompt, clarification, or revision.

2 - Independently: The message is clear and accurate without a prompt.

## Feedback sequence

First, identify a successful phrase. Next, identify one point where meaning or accuracy needs work. Offer one useful language correction, allow a repeat, and compare the two attempts. A total out of eight describes this performance only; do not translate it into a proficiency level.

## Final challenge

Choose a case not rehearsed today. The learner gives a one-minute response, answers two follow-up questions, and writes a 70-110 word message. Add the lesson's second-round challenge. Compare the result with an earlier attempt using the four criteria.

# Use the language responsibly

Fictional language practice. Legal, financial, and regulatory meanings depend on jurisdiction and context; use current documents and qualified review for actual decisions.

## Meaning before performance

Use specialist terms only when they help the listener. Explain unfamiliar words, preserve uncertainty, and ask when an instruction or responsibility is unclear. The model responses illustrate language; they do not authorize professional actions.

## Sources and further reading

The cases, workshops, and explanations are original teaching material. These references provide language frameworks and selected professional context. References were checked in September 2026; consult current local guidance for actual work.

### Digital.gov: plain-language guidance

<https://digital.gov/guides/plain-language>

### Council of Europe: CEFR descriptors

<https://www.coe.int/en/web/common-european-framework-reference-languages/cefr-descriptors>

### US Courts: glossary of legal terms

<https://www.uscourts.gov/glossary>

## Your next step

Choose one expression you can use in a genuine work situation. Rehearse it with fictional details, then adapt the wording to your role and audience.